



CHAPTER xix.

An Act to confirm a Provisional Order of the Minister of Health relating to the City of Sheffield. A.D. 1933.
[28th June 1933.]

WHEREAS under the provisions of the Public Health Act 1875 the Minister of Health has made a provisional order which needs confirmation by Parliament : 38 & 39 Vict. c. 55.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The order of the Minister of Health which as amended is set out in the schedule to this Act is hereby confirmed and shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Sheffield) Act 1933. Short title.

A.D. 1933

SCHEDULE.

CITY OF SHEFFIELD.

*Sheffield
(Water)
Order.*

*Provisional Order amending certain Local Acts and
Provisional Orders.*

WHEREAS the lord mayor aldermen and citizens of the city of Sheffield acting by the council (in this order called "the corporation") carry on a water undertaking in pursuance of the local Acts and provisional orders mentioned in the first schedule to this order and supply water within certain limits;

And whereas the corporation have applied to the Minister of Health for the issue under the Public Health Act 1875 of a provisional order to amend and in part repeal the local Acts and provisional orders in the manner following :

Now therefore the Minister of Health in pursuance of the powers given to him by sections 297 and 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows :—

Short title
and com-
mencement.

1.—(1) This order may be cited as the Sheffield (Water) Order 1933 and the local Acts and orders mentioned in the first schedule to this order and this order may be cited together as the Sheffield (Water) Acts and Orders 1896 to 1933.

(2) This order shall except so far as is otherwise herein expressly provided come into operation on the first day of July one thousand nine hundred and thirty-three.

Interpreta-
tion.

2. In this order unless the context otherwise requires—

"the local Acts and orders" means the local Acts and provisional orders mentioned in the first schedule to this order;

"the Minister" means the Minister of Health.

Supply of
water to
houses
partly
used for
trade &c.

3.—(1) The corporation shall not be bound to supply with water otherwise than by measure—

(a) any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required; or

(b) any of the following whether public or private viz : any institution hospital school nursing home or sanatorium; or

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- (c) any other institution whether public or private which is capable of being occupied by twelve or more persons; or
- (d) any boarding-house lodging-house or public institution capable of accommodating at least twelve persons including the persons usually resident therein; or
- (e) any common lodging-house; or
- (f) any club public assembly hall hotel public house inn or restaurant or any hydropathic establishment.

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(2) Where a supply of water to a farmhouse is used for farming purposes the corporation may require that the supply for farming purposes shall be taken by measure but nothing in this section shall authorise the corporation to refuse a supply of water for domestic purposes to a farmhouse at the rate for the time being payable for water supplied for domestic purposes.

(3) The corporation may make for a supply of water by measure to any of the premises referred to in subsections (1) and (2) of this section a minimum quarterly charge (exclusive of meter rent) of one-fourth part of the annual sum which would be payable according to the scale for the time being in force for a domestic supply furnished to a dwelling-house of the same net annual value.

4. Where a person who takes a supply of water for domestic purposes from the corporation desires to use any water so supplied for or in connection with any apparatus (other than apparatus used for softening water for domestic supplies which does not require water for cleaning cooling regenerating or for motive power or similar purposes) depending while in use upon a supply of continuously running water the corporation shall be entitled to require that all water so used shall—

Charges for
supplies for
apparatus
requiring
continuously
running
water.

- (a) be taken by measure and paid for at a price which does not exceed that set out in section 9 of this order and in that event the minimum quarterly charge for the water shall be ten shillings; or
- (b) be paid for at such rates as may be agreed between the consumer and the corporation.

5.—(1) Subject to the provisions of this order the corporation may supply water for other than domestic purposes on such terms and conditions as they think fit and may supply water for such purposes by measure :

Supply for
other than
domestic
purposes.

Provided that in the case of schools manufactories dyers printers bleachers brewers innkeepers livery stable keepers alehouse keepers and other persons requiring a supply of water for purposes other than for consumption by his or their own

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family for the purposes of any trade or business whatsoever any such supply shall be furnished by the corporation subject to the provisions of this order at prices not exceeding the maximum price specified in section 9 of this order.

(2) The moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates.

Rates for
supply of
water for
domestic
purposes.

6.—(1) The corporation shall at the request of the owner or occupier of any dwelling-house or part of a dwelling-house entitled under the provisions of the local Acts and orders from time to time relating to the corporation to demand a supply of water for domestic purposes furnish to such owner or occupier a sufficient supply of water for such domestic purposes at a rate or rates per annum not exceeding the rate or rates per annum set out in the second schedule to this order and so on in proportion for any shorter period than a year not being less than one quarter :

Provided that the corporation shall not be bound to furnish any such supply as aforesaid for any less sum than the aforesaid rate or rates per annum.

(2) The net annual value of any such premises as aforesaid shall be ascertained by the valuation list in force at the commencement of the period for which the water rate accrues or by any alterations in or additions to such list made during such period :

Provided that where the water rate is chargeable on the net annual value of a part only of any hereditament entered in the valuation list such net annual value shall be a fairly apportioned part of the net annual value of the whole hereditament ascertained as aforesaid the apportionment in case of dispute to be ascertained by a court of summary jurisdiction.

(3) In addition to the foregoing rates the corporation may charge in respect of every water closet beyond the first (for which no additional charge shall be made) on any premises supplied with water a sum not exceeding six shillings per annum and in respect of every fixed bath beyond the first (for which no additional charge shall be made) capable of containing not more than fifty gallons when filled to the level of the overflow or warning pipe or if there be no overflow or warning pipe when filled to a level of six inches below the top of the bath and in respect of every bath beyond the first (for which no additional charge shall be made) having an emptying aperture and capable of containing more than twenty gallons but not more than fifty gallons ascertained as aforesaid a sum not exceeding ten shillings per annum and in respect of every bath capable of containing more than fifty gallons ascertained as aforesaid such sum as the corporation may think fit.

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(4) Any sums due under subsection (3) of this section shall be recoverable at the like dates and in the same manner as other water rates leviable by the corporation under this section are recoverable.

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7. The corporation shall from time to time (unless and until they are authorised to the contrary by parliament or by provisional order confirmed by parliament) supply water in the Wortley rural district at the same rates calculated on the same basis and on the same terms and conditions as those at and on which they supply water within the city of Sheffield :

As to supply
in Wortley
rural
district.

Provided that nothing in this section shall prejudice or in any way affect any application the corporation may make to parliament or to the Minister of Health for power to supply water in any part of the said district otherwise than in accordance with the provisions of this section :

Provided further that nothing in this section shall prejudice any opposition by the rural district council of Wortley to any such application.

8. Where two or more houses or buildings or parts of a house or building or of two or more houses or buildings connected by any means of communication not being a public highway are in the occupation of one and the same company body firm or person they shall be deemed for the purpose of determining the amount of the water rate chargeable by the corporation in respect of any supply of water for domestic purposes furnished by the corporation to any one or more of such two or more houses or buildings or such two or more parts of a house or building or of two or more houses or buildings to be one tenement having a net annual value equal to the aggregate of the net annual values of the separate houses or buildings or parts of a house or building or of houses or buildings so occupied.

Water rate
in case of
two or more
houses in one
occupation.

9. The price to be charged for a supply of water by measure shall not exceed two shillings per thousand gallons.

Price of
supply by
measure.

10.—(1) Where water supplied for domestic purposes is used for horses or washing carriages or motor cars or for other purposes in stables garages or premises where horses carriages or motor cars are kept the corporation may if a hosepipe or other similar apparatus is used charge (except where the water so used is taken by measure) such sum not exceeding twenty-five shillings per annum as they may prescribe and (where more motor cars than one are kept) a further sum not exceeding ten shillings per annum for each motor car beyond the first . Any sums chargeable under this section shall be in addition to the rates authorised by this order for the supply of water for domestic purposes and shall be recoverable in all respects with and in the same manner as the said rates.

Charges for
animals and
vehicles.

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(2) Where water supplied by the corporation to a person who takes a supply both for domestic purposes and by measure for trade or other purposes is used by him by means of a hosepipe or other similar apparatus for horses or for washing carriages or motor cars or for other purposes in stables garages or premises where horses carriages or motor cars are kept the corporation may if they think fit require that all water so used by means of any such hosepipe or other apparatus shall be taken by measure and paid for at the rates for the time being in force for the supply of water by measure.

Special
terms for
supplies to
caravans
and huts.

11.—(1) Notwithstanding anything contained in any of the local Acts or orders a person shall not be entitled to demand or continue to receive from the corporation a supply of water to any caravan shack hut tent or other like structure unless he has agreed with the corporation to take a supply of water by measure and to pay to the corporation a minimum quarterly charge (exclusive of meter rent) not being less than one-fourth part of such annual sum as will give them a reasonable return on the capital expenditure incurred by them in providing the supply or supplies required by him and will cover other standing charges incurred by them in order to meet the possible maximum demand for his caravan shack hut tent or structure and will yield a reasonable return on the cost of the water consumed or used by him and unless he has secured to the reasonable satisfaction of the corporation by way of deposit or otherwise payment of such a sum as may be reasonable having regard to the possible maximum demand of such person for his caravan shack hut tent or structure.

(2) The sum to be so paid and the security to be so given shall be determined in default of agreement by a court of summary jurisdiction who may also order by which of the parties the costs of the proceedings before them shall be paid and the decision of the court shall be final and binding on all parties.

Notice of
discontinu-
ance.

12. A notice for the discontinuance of the supply of water shall not be of any effect unless it is in writing signed by or on behalf of the owner or occupier and is left at or sent by post to the head office of the water department of the corporation or other place (if any) prescribed for such purpose on the water rate demand note or is given by the owner or occupier personally at such office or place.

Rates
payable by
owners of
small houses.

13.—(1) Where the net annual value of any dwelling-house supplied with water does not exceed the sum of thirteen pounds the owner instead of the occupier shall be liable to pay the water rate :

Provided that the Corporation shall make to any such owner who pays the water rate due in respect of any such dwelling-house before the expiration of one half of the period in respect

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of which the rate is charged or such later date as may be prescribed by the Corporation an allowance equal to ten per centum of the amount of such rate but no such owner to whom an allowance is made under the provisions of this subsection shall be entitled to any allowance by way of discount which may be made by the Corporation under section 33 (Discount on water rate) of the Sheffield Corporation Act 1932.

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(2) The provisions of section 73 of the Waterworks Clauses Act 1847 shall mutatis mutandis extend and apply to any payments made under the provisions of this section by the owner of any dwelling-house and as if such first mentioned provisions applied in the case of any lease or agreement whether they were made before or after the commencement of this order.

(3) This section shall not come into operation in respect of dwelling-houses of a net annual value exceeding ten pounds until the first day of October one thousand nine hundred and thirty-three.

14.—(1) At any time after the commencement of this order on the application of the corporation or of any local authority having jurisdiction within the limits within which the corporation are from time to time authorised to supply water or of not less than twenty consumers of water within the corporation limits for the supply of water the Minister by order may vary by way either of increase or decrease the maximum rates and charges for the supply of water authorised by this order or an order made under this section.

Revision of
rates and
charges.

(2) The rates and charges from time to time prescribed shall be sufficient so far as can be estimated to enable the waterworks undertaking of the corporation to be carried on without loss after providing such sums as the Minister may consider reasonable as a contribution towards the reserve fund of the said waterworks undertaking so long as such fund does not amount to the maximum for the time being prescribed therefor.

(3) In the absence of exceptional circumstances the Minister shall not vary the said rates and charges at less intervals than five years.

15.—(1) The Minister may direct any inquiries to be held by his inspectors which he may deem necessary for the purposes of this order and those inspectors shall for the purposes of any inquiry have all such powers as they have for the purposes of inquiries directed by the Minister under the Public Health Act 1875.

Inquiries and
expenses.

(2) Where the Minister causes any such inquiry to be held the costs incurred by the Minister in relation to that inquiry (including such reasonable sum not exceeding five guineas a day as the Minister may determine for the services of any

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A.D. 1933. inspector or officer of the Minister engaged in the inquiry) shall
 according as the Minister may direct be paid by the corporation
 and the Minister may certify the amount of the costs so incurred
 and any sum so certified and directed by the Minister to be so
 paid shall be a debt due to the Crown.

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Repeal.

16. As from the date of operation of this order the following enactments are hereby repealed :—

Sheffield Corporation (Consolidation) Act 1918—

Section 68 (Rates for supply of water for domestic purposes);

Section 69 (Rates for supply of water for other than domestic purposes);

Section 70 (Water rates for warehouses shops &c. Charge for portion of premises occupied by care-taker);

Section 71 (Supply of water by measure); and

Section 77 (Notice of discontinuance).

Sheffield (Water &c.) Order 1923—

Section 3 (Rates and charges for supply of water for domestic and other purposes).

SCHEDULES.

FIRST SCHEDULE.

ACTS AND PROVISIONAL ORDERS RELATING TO WATER SUPPLY.

Session and chapter.	Short title of Act.	Short title of Provisional Order.
59 & 60 Vict. c. cxc.	The Sheffield Corporation Water Act 1896 (so far as not repealed).	—
7 Edw. 7. c. xciii.	The Sheffield Corporation Act 1907 (so far as not repealed.)	—
8 & 9 Geo. 5. c. lxi.	The Sheffield Corporation (Consolidation) Act 1918.	—
9 & 10 Geo. 5. c. xlix.	The Sheffield Corporation Act 1919.	—
18 & 19 Geo. 5. c. lxxxvii.	The Sheffield Corporation Act 1928.	—
22 & 23 Geo. 5. c. xv.	The Sheffield Corporation Act 1932.	—
13 & 14 Geo. 5. c. lxiii.	The Ministry of Health Provisional Orders Confirmation (No. 9) Act 1923.	The Sheffield (Water &c.) Order 1923.

SECOND SCHEDULE.

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WATER RATES FOR DOMESTIC PURPOSES.

Sheffield
(Water)
Order.

Where the net annual value does not exceed	The water rate per annum not to exceed	Where the net annual value does not exceed	The water rate per annum not to exceed
£	£ s. d.	£	£ s. d.
1	0 16 0	41	5 10 0
2	0 16 0	42	5 11 4
3	0 16 0	43	5 12 8
4	0 16 0	44	5 14 0
5	0 19 8	45	5 15 4
6	1 3 4	46	5 16 8
7	1 7 0	47	5 18 0
8	1 10 8	48	5 19 4
9	1 14 4	49	6 0 8
10	1 18 0	50	6 2 0
11	2 1 4	51	6 3 0
12	2 4 8	52	6 4 0
13	2 8 0	53	6 5 0
14	2 11 0	54	6 6 0
15	2 14 0	55	6 7 0
16	2 17 0	56	6 8 0
17	3 0 0	57	6 9 0
18	3 3 0	58	6 10 0
19	3 5 8	59	6 11 0
20	3 8 4	60	6 12 0
21	3 11 0	61	6 13 0
22	3 13 4	62	6 14 0
23	3 15 8	63	6 15 0
24	3 18 0	64	6 16 0
25	4 0 4	65	6 17 0
26	4 2 8	66	6 18 0
27	4 5 0	67	6 19 0
28	4 7 0	68	7 0 0
29	4 9 0	69	7 1 0
30	4 11 0	70	7 2 0
31	4 13 0	71	7 3 0
32	4 15 0	72	7 4 0
33	4 17 0	73	7 5 0
34	4 18 8	74	7 6 0
35	5 0 4	75	7 7 0
36	5 2 0	76	7 8 0
37	5 3 8	77	7 9 0
38	5 5 4	78	7 10 0
39	5 7 0	79	7 11 0
40	5 8 8	80	7 12 0

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Where the net annual value does not exceed	The water rate per annum not to exceed	Where the net annual value does not exceed	The water rate per annum not to exceed
£	£ s. d.	£	£ s. d.
81	7 13 4	91	8 6 8
82	7 14 8	92	8 8 0
83	7 16 0	93	8 9 4
84	7 17 4	94	8 10 8
85	7 18 8	95	8 12 0
86	8 0 0	96	8 13 4
87	8 1 4	97	8 15 0
88	8 2 8	98	8 16 8
89	8 4 0	99	8 18 4
90	8 5 4	100	9 0 0
		over 100 net annual value.	£9 per cent.

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